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CASE NAME: Jones Builders, et al., v. Drake, et al.

CASE NO.: 23SMCV03702

MOTION: Demurrer to the Cross-Complaint

HEARING DATE: 6/25/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Cross-Defendants James A. Atkins and Studio Atkins, Inc. (Roes 14 & 15) demur to the Cross-Complaint filed by Cross-Complainant Jones Builders Group Inc. Cross-Defendants also move to strike the Roe Amendments nos. 14 and 15 filed on April 7, 2026, which named them as Roe defendants.

The Court notes that Cross-Complainant subsequently dismissed all causes of action except one, two and ten as to the Atkins Cross-Defendants. The Court therefore finds that the demurrer and motion to strike is well taken as to all causes except for the first,

second and tenth causes of action. The Court will address those causes below, after considering the motion to strike the doe amendments.

Motion

to Strike – Roe Amendment

Cross-Defendants argue that Cross-Complainant was not actually ignorant of Atkin's identity or role. Cross-Defendants bring a Barrows motion. (Barrows v. American Motors Corp., (1983) 144 Cal.App.3d 1.)

CCP

section 474 provides, in pertinent part, as follows: "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly..." "The purpose of Code of Civil Procedure section 474 is to enable a plaintiff who is ignorant of the identity of the defendant to file his complaint before his claim is barred by the statute of limitations." (Barrows, supra, 144 Cal.App.3d at 7.) An amendment that replaces a Doe defendant with a named defendant will relate back to the filing of the original complaint if the original complaint stated a cause of action against the Doe defendant, the allegations against the defendant that is being added arise from the same facts or circumstances giving rise to the original complaint, and the original complaint alleged that plaintiff was ignorant of the true name and capacity of each Doe defendant. (Fireman's Fund Ins. Co. v. Sparks Const., Inc., (2004) 114 Cal.App.4th 1135, 1143-1144.) Ignorance includes lack of sufficient facts to believe in probable liability. (Fuller v. Tucker (2000) 84 Cal.App.4th 1163, 1170-1171; see Marasco v. Wadsworth (1978) 21 Cal.3d 82, 88 [ignorance encompasses the connection between the person and the injury].)

Courts have summarized

the points from Barrows as follows:

First,

section 474 includes an implicit requirement that a plaintiff may not 'unreasonably delay' his or her filing of a Doe amendment after learning a defendant's identity. Second, a defendant named in an action by a Doe amendment

under section 474 may challenge the amendment by way of an evidence-based motion, which argues that the plaintiff 'unreasonable delayed' his or her filing of the challenged amendment. Third, 'unreasonable delay' ...includes a prejudice element, which requires a showing by the defendant that he or she would suffer prejudice from plaintiff's delay in filing the Doe amendment.

(A.N. v. County of Los Angeles

(2009) 171 Cal.App.4th 1058, 1066-1067.) Under any title, a Barrows motion is reviewed in the same manner as a ruling on a motion for leave to file an amended pleading. (Id., at 1067.)

Section 474 is only

available "when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe Defendant." (McClatchy v. Coblenz, Patch, Duffy & Bass, LLP (2016) 247 Cal.App.4th 371-372.) "Ignorance of the facts giving rise to a cause of action is the ignorance required by section 474, and the pivotal question is, 'did plaintiff know facts?' not 'did plaintiff know or believe that [he] had a cause of action based on those facts?'" (Id. at 372, quoting General Motors Corp. v. Superior Court (1996) 48 Cal.App.4th 580, 594.) "Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned [citations] and that a plaintiff need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance [citations], it is equally true that the plaintiff does not relinquish [his] rights under section 474 simply because [he] has a suspicion of wrongdoing arising from one or more facts [he] does know." (Id.) The fact that the plaintiff had the means to obtain knowledge is irrelevant. (Id.) In other words, actual knowledge of defendants' identity must be shown, and "constructive or legal knowledge will not deprive the plaintiff of the remedy." (Sobeck & Associates, Inc. v. B&R Investments No. 24 (1989) 215 Cal.App.3d 861, 867; see also McOwen, supra, 153 Cal.App.4th at 943-944 ["reasonable diligence is not germane to determining whether a Doe amendment was timely."].)

Generally, the CC states that cross-defendants are liable on indemnity theories for damages arising from Drake Parties' complaint against Cross-Complainant. The Drake Parties have commenced an action against Cross-Complainant alleging Cross-Complainant is responsible in some manner for general and special damages arising out of alleged construction defects and related circumstances at the subject Property.

(CC ¶ 4.) Cross-Complainant was a contractor for the construction project performed at the Subject Property. (CC ¶ 7.) The first cause of action alleges that, if Cross-Complainant is found legally responsible in any manner for any damage as alleged by the Drake Parties or any other party, such damage “was primarily and ultimately caused by the acts and omissions of the Cross-Defendants herein, and each of them, in doing or failing to do the acts relevant to the design, development, manufacture, construction, inspection, supervision, testing, maintenance, management, repair, and observation of the Subject Property and its components, whereas the acts of JBG herein, if any, were secondary, passive, and derivative in nature only. Cross-Defendants are liable in contract, tort, and on statutory grounds as a result thereof.” (CC ¶ 8.) The second cause of action alleges entitlement to equitable indemnity, apportionment of liability, and contribution among and from the Cross-Defendants, and each of them, according to their respective fault, for the injuries and damages allegedly sustained by any party complaining or finding against JBG, if any, by way of sums paid by way of defense, settlement or judgment rendered against JBG in this action. (CC ¶ 11.) The declaratory relief cause seeks a determination of indemnification rights and obligations between the parties (CC ¶ 43.)

Cross-Defendants establish that Cross-Complainant was not truly ignorant of Cross-Defendants’ role in this case, including the connection between Atkins conduct and the Drake Parties’ damages. At the outset of the case, Cross-Complainant was aware of Cross-Defendants’ existence and their general role in the controversy. In January through March 2021, Atkins worked with Jones officers/agents, including discussing the scope of the project, monitoring Jones’s work, identifying defects, and raising issues with Jones’ personnel, sometimes resulting in corrective work. (Atkins Decl., ¶¶ 3-5.) After Jones was terminated on March 6, 2023, Atkins continued in the same role, overseeing the Project, liaising with replacement contractors, and evaluating remedial work. (Id., ¶ 6.) Jones’s own complaint identifies James Atkins by name, alleging he contacted a Jones officer by phone and email to discuss the project and scope of work, and that Atkins requested multiple budget revisions after meetings with his clients. (Compl., ¶¶ 11-12.) Discovery efforts also show Jones’s actual knowledge of Atkins’s role in directing the post-termination repairs on the property. Drakes identified James Anthony Atkins as a witness with “superior knowledge of the construction project.” (Seabolt Decl. ¶ 5 & Ex. 1 at p. 7.) On May 5, 2025, Jones served verified responses to special interrogatories confirming that it was investigating Atkins and his involvement as a designer of the Project. (Id., Ex. 2, at pp. 9, 11.) Drakes identified Atkins as their intended expert. (Seabolt Decl., ¶ 4.) A site inspection was

held on March 14, 2025, led by Atkins, and attended by Jones's counsel and Jones's expert, where Atkins identified alleged defects and responded to extensive questions. (Id., ¶ 4; Atkins Decl., ¶ 8.) On August 5, 2025, Atkins was made available to Jones for a dedicated question-and-answer session regarding the Property and alleged defects. (Seabolt Decl., ¶ 7; Atkins Decl., ¶ 9.) Critically, repairs at the Property were discussed, as was Atkins' role in supervising those repairs. (Atkins Decl., ¶ 9.) Jones's expert had certain questions and requests that needed further investigation, and Atkins agreed to assist in obtaining answers to the questions posed and to gather documents responsive to Jones's expert's requests. (Atkins Decl., ¶ 9; Seabolt Decl., ¶ 7.) Atkins was also available to Jones's experts and counsel for a second question and answer session at mediation on March 11, 2026. (Id., ¶ 8; Atkins Decl., ¶ 10.) The evidence suggests that Jones knew of the facts of Cross-Defendants' liability by August 2025, including that Atkins' role in supervising those repairs, which is allegedly the basis of Cross-Defendants' liability. (Atkins Decl., ¶ 9; Adams Decl., ¶¶ 8-9.)

In turn, Cross-Complainant's evidence does not establish their ignorance at the time of pleading. Cross-Complainant does not cite specific evidence concerning its discovery of Cross-Defendants' role in contributing to the Drakes Parties' alleged damages. Jones only presents its counsel's declaration, claiming that at the March 20, 2026, property inspection, Jones learned of "previously undisclosed repair work" and that Mr. Atkins "described and demonstrated a broader role than had previously been disclosed, including involvement in repair coordination, design-related decisions, and authorization of work affecting the condition of the property." (Id., ¶ 8.) However, since the outset, Cross-Defendant knew that Atkins monitored work at the project, identified defects and ordered corrective work. As noted, since August 2025, Atkins had full discussions with Jones' agents regarding the repairs at the Property and Mr. Atkins' role in supervising those repairs. (Atkins Decl., ¶ 9.)

Cross-Defendants have also established that Cross-Complainant's delay in seeking amendment by seven months, or longer, resulted in prejudice to both Cross-Defendants and the Drake parties. For years, the Atkins Defendants participated as non-parties—without counsel—sitting for questioning, assisting inspections, and supporting claim evaluations. (Atkins Decl., ¶¶ 8-11.) Had Cross-Defendants been named earlier, Mr. Atkins would not have participated without representation, would have asserted privileges, objected to questioning, and preserved defenses differently. (Id.) The belated amendment places him in an adversarial posture with the Drakes after years of cooperative participation. Furthermore,

Cross-Complainant's attempt to insert the Drake parties' known expert into this action on the eve of trial, the day after expert designations went out, suggests gamesmanship. (See A.N., supra, 171 Cal.App.4th at 1068 ["[I]t does not require speculation to recognize that a party who is drawn into litigation on the eve of trial will face difficulties in preparing a defense in such short order."].) By converting him into a defendant at this late stage, there is a significant possibility that Jones will have prevented the Drake Parties from early engagement of a truly neutral expert. (Id., ¶¶ 7-8.) A deposition of Mr. Atkins was at that time scheduled for April 9, 2026, which could not go forward due to the amendment. (Seabolt Decl., ¶ 11.) Trial was originally set for May 26, 2026, with a discovery cutoff at the end of April. The Atkins Defendants must now prepare an entire defense in less than six months, without having directly participated in the prior discovery. While some of the prejudice might be alleviated by the trial continuance (and possible future trial continuance), it would be difficult to entirely remedy these issues.

Accordingly, the motion to strike is

GRANTED. As there is no doe amendment, there is no cause of action stated against Cross-Defendants as Roes. Accordingly, the demurrer is moot.